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fair, but reasonable and just. However, subsequently in Menaka Gandhi vs. Union of India case this requirement of substantive due process was introduced into article 21 by judicial interpretation. Thus the due process clause, which was avoided by the Constitution makers, was introduced by judicial activism of the Supreme Court.

In subsequent decisions, the Supreme Court has upheld death sentences in cases such as Bagwan Dass vs. State of Delhi case, which involved honour killing of a man and woman for marrying outside their caste.

Australian Courts



In Australia, the highest court is known as the High Court of Australia while the State Courts are known as the Supreme Court.

4.6 Constitutional Law, Administrative Law and Indian Penal Code

Constitutional Law

Essentially, The Constitutional law is the supreme law. All other laws have to conform to the Constitutional law. Constitutional law contains laws concerning the government and its people. Constitutional law is a body of laws which defines the role, powers, and structures of different entities of the State, namely, the legislature, the executive and the judiciary, as well as the basic rights of citizens and, the relationship between the central government and state governments.

Constitutional law is a set of rules, which can either be imposing or directive. It provides a way to regulate the nation by proposing a set of laws which shall be abided by the citizens of the country. It leads the country in the right direction without fail. It includes various fundamental rights, fundamental duties and directive principles. We need Constitutional laws to regulate the system that prevails in the country. It acts as an obligation on the citizens, where they cannot go beyond its fundamental rights, which is a must so as to monitor the whole nation at a time.

Activity



Think-Pair-Share

The Constitution represents people's hopes and objectives. The Legislature, an elected body, represents the people. With your partner, work on the following tasks:

a. Who should have more power –The Executive, the Legislature or the Judiciary?

b. Give reasons for your answer with examples.

Rule of Law

The colonial regime introduced the English concept of 'Rule of Law' in India. The three major features of the Rule of Law are

1. All are equal before law
2. Nobody is above law and
3. The same law is applicable to all.

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